

COSMOS-P09

UNITED STATES PATENT AND TRADEMARK OFFICE

Provisional Application for Patent — Written Description

**Fail-closed spend cap that cannot silently widen without typed confirm and
ledgered refusal****ATTORNEY WORK PRODUCT — NOT A FILED PATENT APPLICATION — FOR COUNSEL ONLY****Docket:** COSMOS-P09**Kind:** Method / system**Status:** FILE**Fee class:** \$65 micro-entity provisional**Date of this written description:** 2026-09-07**Name of inventor:** _____ (counsel to complete). The source tree
discloses the operator as Keith. This preparer does not sign as inventor.**Preparer:** COSMOS Chief Coder session (not the inventor). Does not sign as inventor. Does not click
USPTO.**Claims:** none herein. Counsel drafts claims. Paragraphs below are a written description under 35
U.S.C. 112(a).**Sister dockets:** COSMOS-P01 through COSMOS-P13. This provisional does **not** claim the benefit of
a sister. Duplicate HOW_IT_WORKS.pdf into this filing.

*This document is attorney work product prepared for counsel. It is not a filed application, not legal advice, and
not a novelty opinion.*

CROSS-REFERENCE TO RELATED DISCLOSURES

[0001] COSMOS-P01 through COSMOS-P13 are related written descriptions prepared the same day. A provisional cannot claim the benefit of a sister provisional. The how-it-works appendix is incorporated as if fully set forth and must be attached at filing. Do not add technical matter after a filing date (37 CFR 1.53(c)).

FIELD OF THE INVENTION

[0002] The present disclosure relates to gating spend on AI rails so that a cap cannot silently widen, a refused widen is itself recorded, and over-cap work does not run.

BACKGROUND OF THE INVENTION

[0003] OpenAI removed hard budget limits (notify-only). Admin APIs that raise max_budget without a two-step confirm. Silent fallback reroute that spends a different rail. Those are the scars.

BRIEF SUMMARY OF THE INVENTION

[0004] Each rail has a signed cap. A request that would raise the cap without a confirm token is refused (typed 409). The stored cap is unchanged. Widen requires an explicit confirm on the same cap object; ledger the grant or the refusal. Fail-closed: over-cap work does not run.

DEFINITIONS

[0005] As used herein, "Confirm token" means An explicit operator confirmation bound to the same cap object.

[0006] As used herein, "WIDEN_REQUIRES_CONFIRM" means The typed refusal when a widen is requested without confirm.

BRIEF DESCRIPTION OF THE DRAWINGS

[0007] FIG. 1 shows a request that would raise a spend cap. Without a confirm token the gate returns a typed 409 WIDEN_REQUIRES_CONFIRM. The stored cap is unchanged. A signed ledger event records the refusal.

[0008] The drawings are described in prose so that a person of ordinary skill can produce sheet drawings. Sheet drawings may be added by counsel before filing. Do not add new matter after a filing date.

DETAILED DESCRIPTION

[0009] Each rail has a signed cap.

[0010] A request that would raise the cap without a confirm token is refused. Preferred embodiment: HTTP 409 WIDEN_REQUIRES_CONFIRM. The stored cap does not

move on the 409.

[0011] Widen requires an explicit confirm on the same cap object.

[0012] Ledger BUDGET_SET or SPEND_CAP_REFUSED. The refusal itself is evidence.

[0013] Fail-closed: over-cap work does not run.

[0014] Silent fallback to another rail that spends is also a widen and is refused unless confirmed.

BEST MODE

[0015] Measured in the COSMOS tree (docs/CHANGELOG_2026-08-30_CC_AUDIT.md). Signed BUDGET_SET / SPEND_CAP_REFUSED on the ledger.

FURTHER EMBODIMENTS

[0016] A POST to a budget route without confirm never moves the cap. A subsequent GET shows the old cap. That GET body is the live emit (COSMOS-P04).

DISCLOSURE CLOCK (ALREADY PUBLIC)

[0017] Architecture and changelog in public cosmos tree (2026-08-23 and following).

INFORMATION CONCERNING RELATED ART (NOT AN IDS; NOT A NOVELTY OPINION)

[0018] LiteLLM virtual keys / tag budgets (admin can raise); Cloudflare AI Gateway spend limits 2026-06; Anthropic workspace limits; LangSmith evaluator weekly cap; US20250299128A1 multi-cloud budget throttle; EP4381451A1; PCI dual-control; 21 CFR 11.10. OpenAI hard-cap removal is the scar, not a teaching of confirm-to-widen. Combination (AI-rail cap plus no silent widen plus typed confirm plus signed ledger): unknown as blocking.

WHAT THIS DISCLOSURE IS NOT

[0019] Not AWS Budgets alerts. Not circuit breaker exists.

STATEMENT OF INVENTION (NOT CLAIMS)

[0020] An AI-rail spend cap that cannot move without a typed confirm, with the refusal itself ledgery.

[0021] Counsel may draft claims. The foregoing is a statement of invention, not a claim set under 35 U.S.C. 112(b).

APPENDIX TO ATTACH AT FILING

[0022] HOW_IT_WORKS.pdf (APP_OS: SCAR, ROLD, carry-over; APP_COSMOS; APP_CRUCIBLE; APP_BTS_MESH). Duplicate the appendix into this provisional at filing. A provisional cannot claim benefit of a sister.